

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-31

NIELSEN & BAINBRIDGE, LLC

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE)
LIMITED

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Nielsen & Bainbridge, LLC (“NBG” or “Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively “Respondents” or “OOCL”) (NBG, together with Respondents, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

Complainant served its initial disclosures as required by 46 C.F.R. § 502.141(b) as of February 10, 2025. Following the Presiding Officer’s decision of December 31, 2025, to sever this case from the originally filed consolidated action against Respondents and various other ocean carriers and after Respondents filed their Answer on January 13, 2026, Respondents served their initial disclosures on Complainant on January 21, 2026.

The Parties do not currently anticipate needing additional depositions or interrogatories in this case to the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions per party) and 502.145 (i.e., no more than 50 written interrogatories), respectively.

Pursuant to 46 C.F.R. § 502.64(a), the Parties have discussed plans, and emailed, to

schedule a preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS") via a videoconference by the January 28, 2026, deadline, 15 days from service of an answer.

Consistent with Paragraph 20 of the Presiding Officer's January 17, 2025, Initial Order in the original FMC 25-02 case, the Parties have conferred regarding the preparation of a draft protective order concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. The parties are also in the process of working on a draft protocol addressing electronically-stored information, determining appropriate custodians, data sources, and possible search terms to guide discovery in this case.

Although the Parties have discussed methods by which the necessity of the production of documents in this matter may be reduced and will work cooperatively to agree on such efforts which may include, for example, stipulations, requests for admissions, etc., the Parties propose the below schedule, which provides for a discovery schedule in excess of 150 days due to the complexities involved and the volume of discovery in this matter. The Parties are mindful of the 150-day time period set by 46 C.F.R. § 502.141(g); however, the Parties anticipate that documentary discovery will be extensive, requiring additional time.

Complainant's database of potentially responsive documents contains approximately 175 gigabytes of data hitting responsive search terms for Respondent. It is Complainant's experience that much of this data also exists as compressed electronic files which, once opened and expanded, yield a significantly higher data volume. This volume consists of at least 186,454 documents with full families that hit responsive search terms for Respondent within the emails and electronic files collected from specific custodians and significant additional documents and data collected from Complainant's shared document files and other sources. While this initial data base is being electronically searched and narrowed further, potentially responsive documents based on the

Parties' written discovery requests must be manually reviewed for responsiveness, confidentiality, and privilege before they are prepared for production, a task which will take a significant amount of time. The volume of data which must be searched could grow, depending on the list of custodians agreed upon by the Parties.

As to the Respondents, based upon initial assessments of potentially responsive data from likely custodians, they anticipate a return of approximately 2.28 gigabytes of data, which must be electronically searched for responsive documents. Like Complainant's data, the same required processes described above of searching and conducting manual review must take place.

In addition to responsive documents from the Parties, discovery in this case will also consist of responsive documents received by third-party logistics and drayage entities. On September 24, 2025, NBG served subpoenas on four third-party entities and has since received productions from three of those entities with a significant volume of documents, at least some of which involve Respondent Orient Overseas Container Line Limited. NBG is working to review those productions and shared them with Respondents on October 31, 2025 for their review as well. NBG intends to submit additional subpoenas to the Presiding Officer for approval for service which will in turn produce more responsive documents for the Parties to manually review. Respondents also anticipate their own potential need to subpoena third-parties for information.

In the Presiding Officer's Order Severing Cases and Initiating Discovery served on December 31, 2025, the Parties, including ONE, Evergreen, and Yang Ming, were instructed that "coordination is preferred" with respect to depositions that impact all three cases brought by Complainant. While ONE, Evergreen, and Yang Ming have been severed from the instant proceeding, it is anticipated that for purposes of economy, many of the depositions of Complainant's witnesses, and of those that Complainant subpoenas, will require the coordination of deposition schedules with ONE, Evergreen, and Yang Ming. Respondents will cooperate in

the scheduling of the forgoing depositions, though will not attend depositions unrelated to Complainant's claims against Respondents.

The Commission's regulation requiring that discovery be completed within 150 days of the service of a respondent's answer is not realistic for a case of this magnitude in which documentary discovery involves millions of documents, depositions of as many as twenty witnesses per party, and damages alleged in excess of \$8,501,121.14.

The Parties acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve, and that scheduling orders are an important part of this process. However, the Parties wish to emphasize that it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended by administrative law judges and the Commission.¹

There are also policy considerations which favor allowing sufficient time for a full development of the evidentiary record before an agency. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the Parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission). The Parties believe that good cause has been demonstrated to modify the 150-day deadline provided for under 46 C.F.R. §502.141(g) and accordingly propose

¹ See Scheduling Order, *20230930-DK-BUTTERFLY-1, Inc. v. CMA CGM S.A.*, FMC Dkt. No. 25-25, Dkt. 14 (Nov. 14, 2025); Scheduling Order, *20230930-DK-BUTTERFLY-1, Inc. f/k/a Bed Bath & Beyond Inc. v. Evergreen Line Joint Service Agreement (fmc#011982) Consisting of Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima Spa., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd.*, FMC Dkt. No. 24-12, Dkt. 23 (Aug. 16, 2024); Scheduling Order, *Access One Transport, Inc. v. CMA CGM S.A.*, FMC Dkt. No. 24-18, Dkt. 11 (June 7, 2024).

the following schedule:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	February 9, 2026
Parties to serve objections and initial responses to initial RFPs	March 9, 2026
Parties to serve objections and initial responses to initial interrogatories	March 9, 2026
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	April 6, 2026
Substantial completion of productions of documents and ESI in response to initial RFPs	May 26, 2026
Parties to File Joint Status Report	June 22, 2026
Complete depositions of fact witnesses	August 10, 2026
Last day to serve interrogatories, requests for admission, and RFPs	August 10, 2026
Disclosure of initial expert reports, if any	September 14, 2026
Disclosure of rebuttal expert reports, if any	October 19, 2026
Complete expert depositions	November 16, 2026
Close of discovery	November 16, 2026
Complainant’s initial brief, proposed findings of fact, and appendix	January 4, 2027
Respondents’ opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	February 15, 2027
Complainant’s reply and responses to proposed findings of fact	March 8, 2027

Dated: January 23, 2026

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